

STATE OF NEW YORK

6284--A

2025-2026 Regular Sessions

IN SENATE

March 7, 2025

Introduced by Sen. SCARCELLA-SPANTON -- read twice and ordered printed, and when printed to be committed to the Committee on Aging -- committee discharged, bill amended, ordered reprinted as amended and recommended to said committee

AN ACT to amend the public health law and the social services law, in relation to prohibiting the establishment or operation of a shelter for asylum seekers on a property that operates as an assisted living residence, retirement home or nursing home

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "Frank Tammaro Island Shores law".

3 § 2. Subdivision 2 of section 4653-a of the public health law is
4 amended by adding a new paragraph (e) to read as follows:

5 (e) (i) No operator of an assisted living residence, retirement home
6 or nursing home shall be granted authority or approval to establish
7 and/or operate a facility intending to house asylum seekers after such
8 operator has notified the appropriate regional office of the department
9 that the operator intends to close and/or decertify the assisted living
10 residence, retirement home or nursing home.

11 (ii) For the purposes of this paragraph, "asylum seeker" shall mean an
12 individual who changes their country of usual residence to seek tempo-
13 rary or permanent residence in another country, and who has applied for
14 asylum under 8 U.S. Code § 1158 or is eligible to apply; or who is a
15 refugee as defined by section 101(a)(42) of the Immigration and Nation-
16 ality Act (INA).

17 § 3. Section 43 of the social services law is amended by adding a new
18 subdivision 12 to read as follows:

19 12. (a) The commissioner shall not enter into any contract for the
20 establishment and/or operation of a facility intending to house asylum
21 seekers with an operator of an assisted living residence, retirement

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD05122-02-5

1 home or nursing home after such operator has notified the appropriate
2 regional office of the department of health that the operator intends to
3 close and/or decertify the assisted living residence, retirement home or
4 nursing home pursuant to section forty-six hundred fifty-three-a of the
5 public health law.

6 (b) For the purposes of this subdivision, "asylum seeker" shall mean
7 an individual who changes their country of usual residence to seek
8 temporary or permanent residence in another country, and who has applied
9 for asylum under 8 U.S. Code § 1158 or is eligible to apply; or who is a
10 refugee as defined by section 101(a)(42) of the Immigration and Nation-
11 ality Act (INA).

12 § 4. This act shall take effect immediately.